

Tentative Rulings for Department 403

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Tentative Ruling

Re: ***In re: Peachtree Settlement Funding, LLC***
Superior Court Case No. 26CECG00417

Hearing Date: June 24, 2026 (Dept. 403)

Motion: by Petitioner Peachtree Settlement Funding, LLC for Approval
of Transfer of Payment Rights

Tentative Ruling:

To grant.

Explanation:

The Structured Settlement Protection Act governs transfers of structured settlement payments to factoring companies for immediate cash payments. (See Ins. Code, §§ 10134 et seq.) The Act's purpose is to "protect structured settlement payees from exploitation by factoring companies." (*RSL Funding, LLC v. Alford* (2015) 239 Cal.App.4th 741, 745.) The Act provides that a transfer of structured settlement payment rights is void unless the following conditions are met:

- 1) The transfer is fair and reasonable, and in the payee's best interest, taking into account the welfare and support of the payee's dependents (Ins. Code, § 10137, subd. (a)); and
- 2) The transfer complies with the requirements of the Act, will not contravene other applicable law, and the judge has reviewed and approved the transfer (Ins. Code, § 10137, subd. (b); Ins. Code, § 10139.5.).

To determine what is fair and reasonable, and in the payee's best interest, the court is to consider the totality of the circumstances and the factors listed in Insurance Code section 10139.5, subdivision (b), including the purpose of the transfer and the payee's financial and economic situation. (Ins. Code, § 10139.5.)

The court does not believe the transfer is the best idea, given the high effective interest rate that payee would incur in selling the upcoming annuity payments, and payee's inability to change his situation following receipt of a settlement payment April 3, 2025. In Mr. Ramirez's prior petition to transfer the same two payments and the then-pending 2025 payment he stated he was unemployed and intended to use the money to purchase a vehicle and mobile home. Mr. Ramirez has since received \$75,000 and appears to have done neither of these things in the last year. However, given the length of time before the next payments, payee having been represented by counsel in the preparation for the transfer, and payee's belief that the transfer is in his best interests, the court will reluctantly approve the petition.

Accordingly, the court finds, based on payee's articulated plan and reasons for the transfer, that the transfer of the annuity payment rights is fair and reasonable, and in payee's best interest.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/23/26.
(Judge's initials) (Date)